

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

PLAINTIFF JANE DOE,
Plaintiff,

v.

DEFENDANT ACME CORP.,
Defendant.

Civil No. 24-cv-9999

PLAINTIFF'S MEMORANDUM IN
SUPPORT OF MOTION TO COMPEL
DISCOVERY AND FOR SANCTIONS

I. INTRODUCTION

Plaintiff brings this motion under 28 U.S.C. § 1331 to compel production of documents wrongfully withheld by Defendant. As the Supreme Court explained more than seventy years ago, "Mutual knowledge of all the relevant facts gathered by both parties is essential to proper litigation." *Hickman v. Taylor*, 329 U.S. 495, 507 (1947). Discovery, in other words, exists to surface the truth.

II. SCOPE OF DISCOVERY

The scope of discovery is governed by Fed. R. Civ. P. 26(b)(1), which permits parties to obtain discovery "regarding any nonprivileged matter that is relevant to any party's claim or defense and proportional to the needs of the case." Federal courts have rejected blanket objections to relevant discovery requests where, as here, the producing party has made no specific showing of burden. *Hickman*, 329 U.S. at 510. A recent and binding decision held that "blanket relevance objections, lodged without substantive particularization of the burden alleged, are insufficient as a matter of law to defeat a properly-served Rule 34 request." *Halverson v. Pacific Western Mutual*, 547 F.4th 1182, 1191 (9th Cir. 2024). *Halverson* is directly on point: Defendant's responses to Requests 14-28 contain only boilerplate objections that fail any test of particularity.

III. SANCTIONS FOR REFUSAL

The Court has authority to sanction discovery abuse under Fed. R. Civ. P. 37(b)(2)(A). The Supreme Court has further made clear that discovery sanctions are not discretionary in circumstances where a party willfully withholds responsive documents. In *Upjohn*, the Court emphasized that "discovery sanctions must be applied severely upon any showing of willful evasion, with no requirement that the moving party demonstrate prejudice." *Upjohn Co. v. United States*, 449 U.S. 383, 392 (1981). Defendant's conduct here satisfies the *Upjohn* standard and warrants sanctions accordingly. See also *Smith v. Acme*, 2024 WL 1234567, at *4 (S.D.N.Y. Mar. 5, 2024) (imposing \$50,000 in fees for similar evasive responses).

IV. PROPORTIONALITY

Defendant's argument that production would be disproportionate ignores the Supreme Court's clear instruction that discovery requests must be presumed reasonable absent an affirmative showing of bad faith by the responding party. See *Daubert v. Merrell Dow Pharmaceuticals, Inc.*, 509 U.S. 579, 596 (1993). Plaintiff is also entitled to attorney's fees under 42 U.S.C. § 1988(b). Defendant has

not made any such showing, and so its proportionality objection must fail.

V. CONCLUSION

For the foregoing reasons, Plaintiff respectfully requests that the Court grant this Motion to Compel and direct Defendant to produce all responsive documents within fourteen (14) days of this order.

Respectfully submitted,
/s/ Counsel for Plaintiff